



CITY OF LYNWOOD

ADMINISTRATIVE POLICY

INFORMATION TECHNOLOGY POLICY

I. PURPOSE

To establish guidelines, responsibilities, and procedures for the comprehensive use of technology including the use of computers and software, telecommunications equipment, retention of electronic email, information security and procedures, text messaging, and use of your own device(s).

II. POLICY

The Information Technology Policy (Policy), defines the governing principles for the operation and management of the technology used, administered, and maintained by the City.

The objectives of this City of Lynwood (City) policy are to provide clear and concise direction regarding use of the City's computer and telecommunications system. The City intends to manage its information technology and information assets to maximize their efficient, effective, and secure use in support of the City's business and its constituents.

Employees, consultants, or contractors who use the City's information technology are required to read, understand, and agree to the City's Information Technology Policy regarding their responsibilities and conduct related to the protection of the City's information assets and technology.

Employees who violate this Policy may lose access to the telecommunication equipment or will be subject to progressive discipline process up to and including termination of employment.

III. APPLICABILITY

This Policy applies to all full-time and hourly/part-time City employees, City Officials, and any other individual (users) authorized to use the City's computers and telecommunications equipment or services in the course of employment as designated by the Department Director, such as contractors, volunteers and consultants. This policy also covers employee-owned devices used in the course of employment, including tablets, laptops, and smart phones.

IV. DEFINITIONS

- A. Telecommunications Equipment - Equipment such as computers, telephones, smartphones, cellular phones, pagers, radios, two-way radios, iPads, tablet computers, or laptop computers or any other equipment identified by the City Manager or designee.
- B. Negligence - Damage or loss of City equipment and/or property due to the employee's willful misconduct or gross negligence.
- C. City Officials - All elected officials who are serving their term of office including, but not limited to: the Mayor, Councilmembers, City Clerk, and City Treasurer or any other elected position.
- D. Social Media - Websites and applications that enable users to create and share content or to participate in social networking.
- E. Computer Resources - All related peripherals, components, disk space, system memory and other items necessary to run computer systems.
- F. Electronic Mail (E-mail) - The transmission of messages through electronic means in a body or attachment using the City's network or other information technology.
- G. Information Assets - Information and data created, developed, processed, or stored by the City that has value to the City's business or operations.
- H. Information Technology or Network and Computer Resources - Computer hardware and software, network hardware and software, e-mail, voice mail, video conferencing, facsimile transmission, telephone, remote access services, printers, copiers, and all other printed and electronic media.
- I. Intranet - The suite of browser-based applications and HTML pages that are available for use only with access to the City's internal network.
- J. Internet - The worldwide network of computers connected to each other using the IP protocol and other similar protocols. The Internet enables a variety of information management services, including, but not limited to, e-mail, instant messaging, file transfers, file uploads, file downloads, news, and other services.
- K. Internet Services - Any service in which its primary means of communication is the Internet. For example e-mail, web browsing and file transfers.
- L. Mobile Computing Devices - Mobile devices and Mobile media. Mobile data processing devices are used as business productivity tools. Examples include: laptops, tablets, smart phones (e.g. iPhone, Android), and off-site desktops. Mobile media are devices typically used to transport data. Examples include: flash drives, DVDs, CDs, and external hard drives.
- M. Network - The linking of multiple computers or computer systems over wired or wireless connections.
- N. P2P - Peer-to-Peer network. A network where nodes simultaneously function as both clients and servers to other nodes on the network, P2P may be used for a variety of uses, but it is typically used to share files such as audio and video files.

- O. Protected Health Information – Individually identifiable health information about an individual that relates to the past, present, or future physical or mental health or condition, provision of health care, or payment for health care.
- P. Security Incident – An event that has an adverse impact on the confidentiality, integrity, and availability of computer systems, computer networks, electronic information assets, or physical information assets.
- Q. User(s) – The City's departments, commissions, boards, offices, officers, employees, temporary employees, interns, vendors, consultants, contractors, and authorized agents who utilize the City's information assets and technology.
- R. California E-Discovery Law- Assembly Bill 5 (Electronic Discovery Act) - Requires processes and technologies to be in place related to finding and managing electronically stored information that might be relevant in a foreseeable legal dispute. The law requires the agency to stop any automated or regular purging of relevant electronically stored information at the first notification that a legal dispute may be forthcoming.
- S. California Electronic Communications Privacy Act (CalECPA) SB 178 - Limits a government entity from being able to search or access information on an electronic device (e.g., smart phone, computer) or electronic information on a network (e.g., email) without a search warrant or court order.
- T. City-owned cell phone or device - A cell phone or other device capable of sending or receiving text messages that is provided to an employee by the City for the purposes of performing his or her job duties.
- U. City business – Any work, work product, activity or function done by and/or for the City by employees, Officials, consultants, vendors, contractors, volunteers, or Commissioners.
- V. City employee – An employee of the City of Lynwood and also means, for purposes of this policy only, an elected official, volunteer, intern, or appointee of the City of Lynwood, or a person hired by the City through a temporary placement agency to perform work that otherwise would be performed by the employee.
- W. Text or Text Message - A brief message that is composed and sent between two mobile phones or portable devices such as a computer or tablet.
- X. Contractor - Any person who contracts to supply certain materials or do certain work for a stipulated sum for the City; not a City employee.
- Y. California Public Records Act (PRA) - California Government Code §§ 6250 through 6276.48) is a law passed by the California State Legislature requiring inspection or disclosure of governmental records to the public upon request, unless exempted by law.
- Z. Official City Record - Any writing containing information relating to the conduct of the public's business prepared, owned, used or retained by any state or local agency regardless of physical form or characteristics.

V. USE OF CITY ISSUED TECHNOLOGY AND TELECOMMUNICATIONS EQUIPMENT

- A. City issued technology including computers and software, telecommunications equipment, access to the internet, and web based services are provided as a tool to make employees more efficient and effective. The provision of telecommunication equipment, services or allowances is not an employee fringe benefit and not subject to collective bargaining.
- B. All City issued or funded technology and telecommunication equipment and services are property of the City, and employees shall use technology and telecommunication equipment and services for City business only.
- C. Personal use of telecommunications equipment, computer systems, internet, and email is not permitted without proper authorization. In addition to the traditional telecommunications equipment and services, new equipment and services emerge, and it is impossible to list all of the technologies or services that are, or may become available. Whether enumerated or not, employees are strictly prohibited from using *any* of these technologies or services for personal use while at work unless authorized by the supervisor and/or Department Director.
- D. Acceptable Use of the City's Technology, Telephone, Two-way Radio, Cellular Telephone, Internet, E-mail, Computer and software, and Voice Mail System - Employees who are authorized to use the City's technology, telephone, two-way radio, cellular telephone, internet, email, computer and software, and voice mail systems shall use them in the course of performing their duties and responsibilities. These equipment/systems are not to be used in a way that may be disruptive, derogatory, defamatory, obscene, offensive, illegal, harmful to morale or otherwise inappropriate or unrelated to City business. Employees must use two-way radios in accordance with the Federal Communication Commission guidelines. The City reserves the right to access and disclose all messages sent and received over its e-mail system, for any purpose. The City may be required, under some circumstances, to disclose communications sent by e-mail under the Public Records Act or litigation.
 - 1. Employees may not download or install any software or app from the internet, iTunes App Store, or Google Play Store to their City issued computer, laptop, tablet computer, or smartphone unless authorized by the Department Director and the Technology Department.
 - 2. The City has standardized specific software to run on all City computers and servers. Requests to purchase or install new software or programs must be approved by the Technology Department.
 - 3. Employees shall not watch streaming media (unless job related), listen to internet radio, access social networking sites (unless job related), use instant messaging software, play games, or attempt to bypass the City's content filtering system.

4. Employees are responsible for the content of all text, audio, or images that he/she places on or sends over the City's e-mail or internet system. Employees who receive unsolicited e-mail messages from other employees or from the outside that appears to violate this Policy should immediately inform his/her immediate supervisor. In no case shall the employee share the e-mail message with any other employee.
5. Subscriptions to a Listserv (electronic mailing list) shall only be for work related professional/government organizations and authorized by the Department Supervisor or Director.
6. For security reasons, employees shall not connect personal devices to City computers or the City's computer network. This includes connections via USB port, Ethernet port, or serial port using equipment that is not City issued unless approved by the Information Technology Department.

Nothing in this policy shall be interpreted so as to supersede or interfere with employees' rights under the MMBA to protected concerted activities, including but not limited to Union business.

E. Acceptable Use of other City Owned Technology and Telecommunication Equipment - The City will issue or make available City owned telecommunication equipment such as smartphones, cell phones, tablets, or two-way radios to employees who are deemed to be required to be available at all times to conduct City business or for emergency, or other reasons. Incoming personal calls, emergency notifications, and other calls of minimal duration and frequency (de minimus), which cannot reasonably be made at another time, are permitted. The Technology Department may audit an employee's City issued telecommunications equipment for conformance to this Policy. Abuse or excessive use beyond the scope of normal business use will be reported to the Supervisor and Department Director. User may be responsible for resultant overage charges and may face disciplinary action by the Department Director.

1. Use of Telecommunication Equipment While Driving - Employees must adhere to all federal, state or local laws and regulations regarding the use of technology and telecommunication equipment while driving. Equipment shall not be in use when operating a City vehicle while on a public roadway at any time. Should an employee need to make a business call while driving, he/she should locate a lawfully designated area to park and make the call or use hands-free technology.
2. Assignment of Telecommunication Equipment (Cellular Phones and Smart Phones) - Assignment of City telecommunication equipment shall be based upon the most cost effective method of accommodating the need for public and employee safety, field communications and delivery of government services. The type of equipment assigned to an employee will vary based upon the

function and services the employee performs. Department will be advised by the Director of Technology or designee on the most cost effective equipment for their telecommunication needs.

3. Stipends – The City may provide a cell phone stipend upon the approval of the Department Director and City Manager at amounts set by the Lynwood City Council.

F. Responsibilities:

1. Department Director or Designee - is responsible for budgeting, identifying and authorizing employees and type of equipment to be issued; completing the necessary paperwork; deploying, and reviewing the charges; containing losses; ensuring departmental accountability, personal responsibility and preventing improper use; maintaining a list of employees who have equipment with appropriate information; ensuring employee obtains a copy of this policy and signs the acknowledgment form; reporting to the appropriate individual problems with the equipment; collecting the equipment upon the employee's retirement, separation or termination.
2. Employee - is responsible for complying with this Policy; properly using, caring, safeguarding, protecting and securing the assigned City equipment; reporting immediately to the Department Director the loss, theft or need of repair of the equipment; immediately surrendering and returning the equipment upon retirement, separation or upon request of the City Manager, the Department Director, or a designee. Hourly employees are also responsible for ensuring that the use of the equipment conforms to the Fair Labor Standards Act. For example, not accessing and/or answering emails off-duty, unless he/she has received prior permission to do so.
3. Technology Department – is responsible for setting up all computers, email, internet systems and mobile equipment as determined by the Department Director, tracking and authorizing changes; setting up all telephone communications; coordinating the purchase of necessary telephone equipment; making payments to vendors and coordinating any repairs to City equipment.

G. The City reserves the right to monitor, for any reason, the use of City computers, laptops, or mobile devices, including the right to review, audit, and disclose all matters sent over and/or stored in the computer systems, computer networks, fax machines, and electronic mail systems. Monitoring may be performed by observation, aural, mechanical, electronic, or other means. Monitoring may take place on a random basis and may be used to monitor job performance for training or quality control purposes. Direct monitoring will occur when the City has reasonable belief that an employee is using City property in an unauthorized manner. Despite the existence of passwords, employees should not assume that any electronic communication is private. Highly confidential information or data should be transmitted in other ways.

- H. Employees who have been issued telecommunication equipment shall not lend their issued equipment to other employees other than for an emergency purpose related to City business or an urgent personal matter.
- I. Damaged or unserviceable City equipment and/or property shall not be thrown away, sold, traded, donated, destroyed, or otherwise disposed of without proper authority and must be reported immediately to the employee's immediate supervisor. In the event that any City equipment and/or property become damaged or unserviceable, no employee shall attempt to repair the equipment and/or property.
- J. The use of damaged or unserviceable equipment and/or property should be discontinued as soon as practical and replaced with comparable, serviceable equipment and/or property as soon as available and following notification and approval of the employee's supervisor.

VI. EQUIPMENT

A. Request for New or Replacement Telecommunications Equipment:

1. After the Department Director has identified the employee who will receive telecommunication equipment, the Department Director will submit an email request to purchase and/or issue to the Director of Information Technology.
2. Requests will be reviewed and approved by the Director of Information Technology .
3. Unusual or non-standard equipment requests must be approved by the City Manager..
4. The employee must sign an acknowledgment form that he/she has received a copy of this Policy upon receiving the assigned equipment.
5. Upon retirement or separation of employment, the Department Director or designee must collect all equipment issued to the employee and return to the Director of Information Technology.

B. Tracking and Monitoring:

1. The Technology Department shall review and authorize the timely payment of the telecommunication equipment or service invoices on a monthly basis and report excessive usage to Department Director. The Information Technology department will track all telecommunications equipment.

C. Service and Repairs:

1. All broken or damaged equipment must be reported to the Director of Information Technology.

D. Reporting Lost or Stolen Telecommunication equipment:

1. Employee must report the damage, loss or theft to their immediate supervisor. If the equipment was stolen, a police report must be filed immediately with the Sheriff's Department.
2. The immediate supervisor will conduct an investigation or work in conjunction with the Sheriffs' Department to investigate the report of theft and complete a "Damaged, or Lost Equipment/Property Report" form.
3. Once a determination is made, the Department Director will determine if employee is eligible for a replacement and/or if the employee is found to be negligent to recommend the appropriate disciplinary action.
4. Employee will be held accountable for equipment assigned and may be liable for market value of lost items.

VII. BRING YOUR OWN DEVICE (BYOD)

Mobile devices are a valuable tool in conducting business. It is the City of Lynwood's policy to protect and maintain safety, security, and privacy of our systems while using these tools.

City staff may use a personal mobile device for conducting City business only after receiving management approval, provided the mobile device meets the Information Technology Department's minimum requirements. Immediate or emergency communication or usage of personal mobile devices is permitted for just cause but must reported as soon as possible to the employee's supervisor and the usage should follow the retention of records as described in this policy.

- A. Staff authorized to use personal mobile devices to conduct City business are expected to ensure the security of the City information technology systems. Storing of City information on personal mobile devices or on unapproved Internet or "Cloud" based services is prohibited. Users are required to delete all City data from personal mobile devices when transitioning to a new personal mobile device, when no longer using the device to support business duties, or when separating from the City.

B. Use of Personal Mobile Devices for Conducting City Business

Management approval is required to use a personal mobile device that uses the latest operating system that communicates through cellular data or Wi-Fi to conduct City business.

C. Support Services

The Technology department will only provide support related to configuration of device management, remote access, email access, and connectivity to City systems, but not support for the actual device.

D. Device Management Controls

1. The Technology department will install or require the user to install management and monitoring software on the device to aid in validating security requirements and troubleshooting City related issues. Once installed, this software may not be removed or tampered with while the device is being used for City business.
2. Passwords of at least four characters will be enforced on mobile devices.
3. Mobile devices will be locked requiring password entry after 5 minutes of inactivity.

E. Notification of Decommissioning, Loss or Theft

1. City staff is responsible for immediately contacting the Technology Department if a mobile device is lost or stolen.
2. When City staff replaces or upgraded a device, IT staff must be notified to have the decommissioned device removed from the management system and have the new device added.

F. Device Wipe

Mobile device users agree to allow IT to remove all City related data from mobile device under the terms of this agreement if said device is lost, stolen or compromised.

G. Revocation of Termination of Mobile Device Privileges/Access

1. City staff who fail to report a mobile device no longer being use for City business, or lost or stolen may have future mobile device privileges revoked.
2. The City may terminate a user's permission to utilize a personal mobile device for City business at any time.
3. User privileges automatically expire upon separation from employment.
4. Users are required to remove all City data from their mobile device upon termination of privileges.

VIII. TEXT MESSAGES

As a general rule, City business should not be conducted via text messaging. The failure to follow this policy may expose the City to damages and attorney's fees under California's Public Records Act.

A. Texts Regarding City Business Are Public Records

Some text messages regarding City business constitute public records that must be retained. Texts that are retained, or texts that exist on a cell phone at the time a public records request is received, may be subject to disclosure under the Public Records Act or in litigation. This applies whether text messages regarding City business are sent or received on a City-owned or personally-owned cell phone or device.

1. City-Owned Cell Phone or Device

Employees have no right to privacy in City owned cell phones or devices. After receipt of a public records request, and upon request of the City, an employee may be required to provide his or her city-owned cell phone or device to the City for inspection, and all information on the cell phone or device is subject to City review.

Personal text messages that do not relate to City business, are not a public record, and need not be retained on a City-owned cell phone or device. However, the fact that personal texts are sent or received on a city-owned cell phone or device is a matter of public record. If personal text messages exist on a City-owned cell phone or device at the time the City receives a public records request, those messages must be retained until the City responds to the request. The content of those personal text messages may be reviewed by City staff in making a disclosure decision.

2. Personally-Owned Cell Phone or Device

Personal cell phones and devices are the private property of City employees. Personal text messages do not relate to City business, are not a public record, and need not be retained on a personally-owned cell phone or device. However, text messages sent using a personal cell phone or device that pertain to City business are public records.

While the City may not be permitted to inspect an employee's personal cell phone or device without the employee's consent, an employee who uses his or her personal cell phone or device to send or receive text messages related to City business is required to follow this policy, and shall be required to produce, transcribe, or note in another document texts relating to City business in accordance with this policy. City employees are also required to cooperate with the City and provide their fullest assistance in fulfilling the City's duties and obligations under the Public Records Act or in litigation.

B. Transitory Texts and Non-Transitory Texts

Text messages regarding City business are of two types: (1) transitory texts; and (2) non-transitory texts. In accordance with this policy, transitory texts may be deleted by the user once the texts have served their purpose. On the other hand, non-transitory texts may not be deleted from a cell phone or device until they have been produced, transcribed, or retained in some other manner.

1. Texting Should be Limited to Transitory Texts. An employee should limit his or her texting regarding City business to transitory texts that can be deleted once the message serves its purpose. In the event communications that are more than transitory are necessary, such communications should occur in person, by telephone, by email, or by memorandum, but not by text. Using this approach will avoid complications with archiving and producing texts for the purposes of responding to public records requests.
2. A PRA or subpoena request is submitted that may include within its scope text messages transmitted on either a City owned or a personally-owned cell phone or device, the employee, once put on notice of the request, shall not delete any text messages from the cell phone or device, even if such text is transitory or personal. In this case, the employee must work with City Clerk Department to produce the requested public records or other necessary response.

In the event a records request is submitted that may include within its scope text messages transmitted on a personally owned cell phone or device, the employee shall cause the text messages related to City business to be produced in accordance with this policy, if the employee has not already done so.

Additionally, the employee must describe the following to the City Clerk Department:

- a) A detailed description of the search method used to search the personally-owned cell phone or device for responsive public records.
- b) An indication of whether any responsive records were located.
- c) If no responsive records were found, an explanation of why.
- d) If records were found on the cell phone or device that are within the scope of the request but are personal to the employee and not related to City business, the employee

must provide specific and detailed facts that support the personal nature of those texts.

3. If responsive public records are found during the employee's search of his or her personal cell phone or device, the employee shall produce those public records as this policy provides. The employee may choose to comply with this policy by providing his or her personal cell phone to an authorized City employee to conduct the necessary search. Nothing in this policy requires the employee to allow such an inspection, and no adverse action may be taken against an employee if he or she chooses not to produce his or her personal cell phone and instead complies as otherwise provided for within this policy.

C. Non-Transitory Texts

Employees should not send non-transitory texts relating to City business through a cell phone or device. Rather, an employee should limit his or her texting regarding City business to transitory texts that can be deleted once the message serves its purpose. In the event a person sends or receives a non-transitory text, it shall be produced in accordance with this policy.

D. Reproducing Text Messages

1. There are three instances in which an employee is required to produce a text message:
 - a) When the text message is non-transitory and must be retained;
 - b) When a supervisor orders the employee to produce the text message; or
 - c) When the text message is maintained on a cell phone or device and the employee is notified of the existence of a public records request for the text message.

IX. **EMAIL USAGE**

Email is a communication tool provided by the City for employees to use to accomplish their work.

A. Email Eligibility Requirements

1. The City shall provide an email address to all full time employees who have regular access to a City provided computer, laptop or tablet or for which an email address is needed in order for the employee to perform his/her job functions.

2. On a case-by-case basis, based on the employee's job duties, the Director of Information Technology may provide a City-issued email address to a part-time employee.
3. No Contractor or Consultant shall be issued a City email address unless approved by the Director of Human Resources.

B. Proper E-mail Usage

1. City e-mail access is controlled through individual accounts and passwords. It is the responsibility of every e-mail user to protect the confidentiality of his or her account and password information.
2. Public or 'free' wireless hotspots or Wi-Fi connections such as those available in coffee shops or malls are susceptible to potential threats such as hackers and shall not be used to access City E-mail or connect to the City's remote server using smartphones, iPads, tablets, or laptops. Trusted home/work network connections or data plans through a cellular company is the permitted method of connection.
3. E-mail users are responsible for managing their mailboxes, including organizing and cleaning out any non-City related messages that do not constitute Official City Records. E-mail users are responsible for determining if e-mails contain substantive information regarding City business, or may later be important or useful for carrying out City business, and thus could be considered as Official City Records.
4. E-mail users are expected to remember that e-mail sent from City e-mail accounts is a representation of the City. All e-mail users must use normal standards of professional and personal courtesy and conduct when drafting e-mail messages. E-mail messages should be drafted with the same care and in the same manner as any communication printed on City letterhead. Like any other City communication, e-mail is a reflection of the City's business practices.
5. Use of an employee's personal email address to conduct City business is strictly prohibited. If done, those personal emails may be subject to PRA laws and a subpoena.
6. All messages transmitted over the e-mail system should be limited to those that involve City business activities or contain information essential to City employees for the accomplishment of City-related tasks. Accordingly, the City does not intend for its e-mail system to be used a forum for speech, or to be used to advocate individual policies unrelated to the City. Use of the City's e-mail system for personal communication is discouraged. Use of the City's email system is permitted for City business only. "Spam" e-mail can be harmful to the City's computer system. Spam e-mail is

electronic junk mail, usually unsolicited commercial and non-commercial messages transmitted as a mass mailing to a number of recipients. If an e-mail message does not pertain to City business, it should be deleted from your e-mail account and not forwarded. Examples include jokes, thoughts for the day, "chain" type e-mail messages, forwarded personal messages, etc.

B. Prohibited Uses of the City's E-mail System

Following types of e-mail messages that are prohibited from being transmitted to or from the City's e-mail system:

- Use of personal email address to conduct City business.
- Messages in support or opposition to campaigns for candidates for an elected office or a ballot measure.
- Messages of a religious nature, promoting, or opposing religious beliefs.
- Messages containing language that is disruptive, insulting, offensive, disrespectful, demeaning, or sexually suggestive.
- Messages containing harassment of any form, slurs, obscenities, or any representation of obscenities.
- E-mail shall not be used to send or receive copyrighted material, propriety financial information data or similar materials that may be contrary to law or City policy.
- E-mail users are prohibited from entering into any contracts or agreements on behalf of the City of Lynwood through e-mail, unless otherwise approved by the City.
- E-mail shall not be used for gambling or any activity that is violation of local, state, or federal law.

C. E-mail Retention

1. Active/Current Employees

All e-mails older than six months from the date of the email will be automatically deleted from the City's email server, unless a litigation hold has been placed on the user's account. Other extenuating circumstances must be approved by the City Manager. All e-mails will also be archived through a service in the cloud for a period of six months from the date of the email.

2. Separated Employees

All e-mails will be retained for ninety (90) days following separation, at which time the emails will be destroyed, unless a litigation hold has been placed on the communication or other extenuating circumstances approved by the City Manager or Human Resources Department.

D. Email Privacy

1. No Expectation of Privacy

The City's computers and e-mail system are the property of the City of Lynwood and are provided for business purposes, users shall have no right or expectation of privacy or confidentiality in any e-mail message created, sent, received, deleted, or stored using the City e-mail system, irrespective of subject matter. All e-mail messages and any attachments on the City's computer network are the property of the City of Lynwood and may be accessed by authorized personnel, without notice. City e-mail communications may be monitored as allowed by the Electronic Communications Privacy Act, the Federal Stored Wire and Electronic Communications Act, and applicable federal or state laws. Most communications among City employees are not confidential communications. However, certain communications such as police investigations, personnel records, or attorney-client communications may be confidential or contain confidential information. Questions about whether communications are confidential, and how they are to be preserved, should be discussed with your Department Director, the City Attorney, or the City Clerk.

2. No E-mail "Snooping"

It is a violation of this City policy for an employee, including Information Technology staff, to use the e-mail system in an improper manner, such as for the purposes of satisfying idle curiosity about the affairs of others. Abuse of authority by improperly accessing e-mail is prohibited. Employees found to have engaged in such "snooping" may be subject to disciplinary action consistent with City policies.

3. E-mail Access Must Be Private

Notwithstanding the City's right to have authorized personnel access e-mail messages, all e-mail messages should be treated as confidential by other City employees and accessed only by the intended recipient. Employees are not authorized to retrieve or read any e-mail messages that are not sent to them. Any exceptions must receive prior approval by a designated Information Technology staff member, Human Resources Director or the City Manager.

4. Use Caution with Confidential Information

Employees must exercise a greater degree of caution in sending confidential information or personally identifiable information such as social security numbers or bank account numbers on the City e-mail system than they take with other media because of the risk that such information may be copied and/or retransmitted. When in doubt, DO NOT

USE E-MAIL as a means of communication. Furthermore, the use of passwords for security does not guarantee confidentiality.

X. RECORDS RETENTION AND DISCLOSURE EMAIL

E-mail generates correspondence and other documentation, which may be recognized as Official City Records in need of protection/retention in accordance with the California Public Records Act (Government Code 6250-6276.48) and other records retention laws. It is the responsibility of individual employees and their Department Directors to determine if an e-mail is an Official City Record, which must be retained in accordance with the City's Record Retention Policy.

A. E-mail as Official City Records

The City e-mail system is a tool used for the temporary transport of communication, and as a method to send or receive correspondence. If an e-mail message, including any attachments, can be considered an Official City Record, as defined by this Policy, such e-mails should be printed as a hard copy and filed in accordance with the City's Records Retention Policy. Generally, the sender of the e-mail should be the person responsible for printing and filing it accordingly, but persons responsible for a particular program or project file shall be responsible for retaining all e-mail messages they send or receive related to that program or project. In addition to, or as an alternative, e-mail messages that are considered Official City Records may be moved from the e-mail system into an electronic file folder in the City's document management system.

E-mail messages shall be kept, either electronically in the City's document management system or printed in hard copy, when retention is required by law or where retention would serve a useful purpose for the City. Employees should consult with the City Clerk's Department staff members for details and the City's records retention policy for the appropriate procedures and legal requirements.

B. Deleting E-mail

City e-mails that are more than thirty (30) days old in the "Deleted Items" folder shall be deleted for all City e-mail users.

C. Preserving E-mail – Public Records Act Requests and Subpoenas

The City receives requests for inspection or production of documents pursuant to the Public Records Act, as well as demands by subpoena, litigation disclosure/discovery demand, and/or court order for such documents. In the event such a request or demand includes e-mail, the employees having control over such e-mail, once the City becomes aware of the request or demand, shall preserve any e-mail which is in existence until it is determined whether such e-mail is subject to preservation, public

inspection or disclosure. The City Clerk shall be contacted regarding any such e-mails within the employee's control.

D. Preserving E-mail – Claims and Potential Claims Against the City

Any e-mail messages that relate to a claim, a potential claim a lawsuit filed against the City, even if a subpoena or court order for such e-mail messages has not yet been issued, must be retained. When City employees become aware of a potential claim, an actual claim, or a lawsuit against the City, they must preserve any e-mail messages and attachments that have any information relevant to that matter.

XI. INFORMATION SECURITY

Information Technology Department is responsible for overall security of information assets and technology at the City. The Director of Technology may delegate specific responsibilities related to information security to others within the City based on their job function.

A. Shared Login

Shared login to computers that have access to specialized financial peripherals such as check processing equipment is prohibited. The department director or manager shall notify Information Technology staff of specific computers that sharing is prohibited.

B. Password Use

1. All e-mail, network, domain accounts must be password protected. All new accounts will be created with a temporary password. The temporary password must be changed upon first use.
2. Mobile devices must be password protected.
3. Passwords used on the City's systems and on non-City systems that are authorized for use must have the following characteristics:
 - Passwords must be a minimum of 8 characters in length;
 - Passwords must contain both alphabetic and numeric characters;
 - Passwords must not be the same as the username;
 - Passwords must not contain proper names or words taken from a dictionary;
 - Passwords must be changed at minimum every 90 days.
 - Passwords must not be disclosed to anyone. All passwords are to be treated as Confidential information.

C. Screen Savers

Use of password-protected screen savers is recommended to prohibit unauthorized system access. Screen savers should initiate after 15 minutes of inactivity. Password-protected screen savers are

also required on workstations that access Internal information if the workstation is not in an area that has restricted access.

D. Mobile Computing and Remote Access

1. Remote access is provided by the City as an information conduit to assist in the accomplishment of municipal duties and goals. Any other use is strictly prohibited. Requests for remote access must have a valid business reason and be approved by the Department Director.
2. All remote access connections must be through a secure, centrally administered point of entry approved by the City. Authorized remote access connections must be properly configured and secured according to City-approved standards including the City's password policy. All remote desktop protocol implementations must be authorized by the Department of Technology. Remote access through unapproved entry points will be terminated when discovered.
3. The City will not be responsible for maintenance, repair, upgrades or other support of non-City owned computer equipment used to access the City's network and computer resources through remote access services.

E. Information Security Incident Management

1. Violations of the City's Information Security Policy or any or all parts or provisions of this Policy must be reported to Department of Technology.
2. Users must ensure that Technology staff is notified immediately whenever a security incident occurs. Examples of security incidents include a virus outbreak, defacement of a website, interception of email, blocking of firewall ports, and theft of physical files or documents.
3. All reports of alleged violations of this Policy, or any part or provision hereof, will be investigated by the appropriate authority. During the course of an investigation, access privileges may be suspended.

XII. DISSEMINATION OF POLICY

All employees shall receive a copy of this Policy when they are hired. The Policy may be updated from time to time and redistributed with a form for the

employee to sign and return acknowledging that the employee has received, read, and understands this Policy.

XIII. APPENDICES

- A. Acknowledgement of Comprehensive Information Technology Policy Form
- B. Damaged or Lost City Employees Equipment/Property Report

XIV. APPROVED BY THE CITY MANAGER


A horizontal line with a handwritten signature in black ink above it.

XV. ACTION

This Policy is effective on November 15, 2018.



ATTACHMENT A

MEMORANDUM

DATE: November 15, 2018

TO: All City Employees

FROM: Jose Ometeotl, City Manager

SUBJECT: INFORMATION TECHNOLOGY POLICY

Attached please find the City's new Information Technology Policy. This policy supersedes the Use of Telecommunication Equipment Policy issued in 2006.

Please read this document carefully as all Lynwood employees are expected to follow this policy.

All Employees must sign below as receiving a copy of the City's new Technology Policy. If you have any questions or concerns, please contact the Human Resources Division at extension 221.

Attachment (1)

I have received a copy of the attached policy. I understand that I am responsible for reading and following this policy:

EMPLOYEE NAME

DATE

EMPLOYEE SIGNATURE



CITY OF LYNWOOD

REPORT OF LOST, DAMAGED OR UNSERVICEABLE
CONDITION OF TELECOMMUNICATION EQUIPMENT

Employee's Name: _____ Date: _____
Department/Division: _____
Date of Incident: _____
Description of Event: _____

I certify that the information submitted in this form is true to the best of my recollection. I understand that my supervisor will conduct a thorough investigation and if I was found negligent, the City may take disciplinary action against me up to and including termination of employment.

Employee's Signature: _____ Date: _____

cc: Department Director
Director of Human Resources
Director of Information Technology



CITY OF LYNWOOD
DAMAGED OR LOST CITY EQUIPMENT/PROPERTY
SUPERISOR'S REPORT

This is to certify that _____ (supervisor's name) has thoroughly investigated the report of damaged or lost City equipment and/or property reported by _____ (employee's name) on _____ (date/time).

The following records the specific facts that the above-named employee reported:

After a thorough investigation of the reported facts, it has been determined that:

- ☐ The employee IS NOT responsible for the damaged or lost city equipment/property.
- ☐ The employee IS responsible for the damage or loss of City equipment/property. The following appropriate disciplinary action has been recommended

Comments:

Supervisor's Signature: _____ Date: _____

cc: Department Director
Director of Human Resources
Director of Information Technology